

Bhargavi W/O Hariprasad Reddy vs Hariprasad Reddy S/O Kotareddy on 1 August, 2023

- 1 -

NC: 2023:KHC-K:6016
CP No. 200071 of 2022

IN THE HIGH COURT OF KARNATAKA,

KALABURAGI BENCH

DATED THIS THE 1ST DAY OF AUGUST, 2023

BEFORE

THE HON'BLE MRS JUSTICE K S HEMALEKHA
CIVIL PETITION NO.200071 OF 2022

BETWEEN:

SMT. BHARGAVI W/O HARIPRASAD REDDY
AGE: 24 YEARS,
OCC: HOUSEHOLD,
R/O KANNALLI CAMP,
TQ.SURPUR,
DIST. YADGIRI,
NOW RESIDING AT NATRAJ COLONY,
TALUK SINDHANUR,
DIST. RAICHUR 584101.

...PETITIONER

(BY SRI PUNITH MARKAL FOR SRI MAHANTESH PATIL, ADV.)
AND:

Digitally signed
by SHILPA R

TENIHALLI
Location: HIGH
COURT OF
KARNATAKA

SRI HARIPRASAD REDDY @ HARIVARAPRASAD
REDDY S/O KOTAREDDY @ NALLIMILLI KOTIREDDY,
AGE: 27 YEARS, OCC:ASSISTANT MANAGER,
AT JINDAL COMPANY LTD.,
R/O NEAR JINDAL PUBLIC SCHOOL,
JINDAL NAGAR,
ACHEPALLE BENGALURU AND NOW RESIDENT OF
KANNAMALLI CAMP
TQ:SURPUR, DIST:YADGIRI. 585 202.

...RESPONDENT

(NOTICE TO RESPONDENT SERVED)

- 2 -

NC: 2023:KHC-K:6016

CP No. 200071 of 2022

THIS C.P. IS FILED U/S.24 OF CPC, PRAYING THAT
M.C.NO.60/2022, PENDING ON THE FILE OF LEARNED SENIOR
CIVIL JUDGE AND JMFC, SHORAPUR BE WITHDRAWN AND
TRANSFERRED TO THE LEARNED SENIOR CIVIL JUDGE, AND
JMFC AT SINDHANUR, RAICHUR DIST.

THIS PETITION COMING ON FOR ADMISSION, THIS DAY,
THE COURT MADE THE FOLLOWING:

ORDER

Though the respondent is served with notice he has chosen to remain absent.

2. Heard the learned counsel for petitioner.

3. The Petitioner-wife is before this Court seeking to withdraw M.C.No.60/2022 pending on the file of Senior Civil Judge and JMFC, Shorapur and transfer to the court of Senior Civil Judge and JMFC at Sindhanur, Raichur District.

4. It is not in dispute that the petitioner is the legally wedded wife of respondent and marriage was solemnized on 09.11.2019 at Kannalli Camp, Tq. Surpur, Dist. Yadgiri as per the Hindu customs and traditions. Due NC: 2023:KHC-K:6016 to un-cordial relation between the petitioner and the respondent, they are living separately, since, 2022.

5. It appears that the petitioner has filed a petition against the respondent under Section 125 of Cr.P.C. in CrI.Misc.No.1987/2022 on the file of learned Civil Judge and JMFC, Sindhanur and another petition in CrI.Misc.No.1984/2022 under Section 12 of the Domestic Violence Act and same is pending consideration before the PrI. Civil Judge & JMFC, Sindhanur. In the meanwhile, the petitioner - wife has also filed M.C.No.73/2022 under Section 9 of Hindu Marriage Act, 1955 on the file of Senior Civil Judge at Sindhanur seeking decree for conjugal rights. Such being the state of affairs, the respondent has filed petition in M.C.No.60/2022 under Section 13(1)(ia) & (ib) of Hindu Marriage Act, 1955, before the Senior Civil Judge & JMFC, Shorapur seeking for divorce on the ground of cruelty and desertion.

6. The learned counsel for the petitioner would contend that the petitioner is residing at Sindhanur along NC: 2023:KHC-K:6016 with her family members, and would contend that the distance between Shorapur and Sindhanur is around 110 K.Ms causing inconvenience to wife to attend the proceedings in M.C.No.60/2022 at Shorapur. The learned counsel would contend that the convenience of the wife takes a paramount concern while transferring the petition from one place to

another.

7. Section 24 of the CPC enumerates this Court to exercise power to transfer the petition, suit, appeal or other proceedings where justice demands. In transfer petition, where the transfer is sought by the wife, the convenience of wife needs to be considered as held by Apex Court in catena of judgment in line. The Apex Court in case of N.C.V. AISHWARYA VS. A.S.SARAVANA KARTHIK SHA reported in 2022 SCC OnLine SC 119 has held that at para No.9 which reads as under:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding.

NC: 2023:KHC-K:6016 In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

8. In the present facts and circumstances, the petitioner being a young lady aged about 24 years residing at Sindhanur, at her parents house, it is inconvenient for the petitioner to travel alone all the way to Shorapur which is around 110 K.Ms.

9. In light of the reasons stated supra, the petition filed by the wife needs to be allowed. Accordingly, this Court pass the following:

NC: 2023:KHC-K:6016 ORDER

a) The civil petition is allowed.

b) The M.C.No.60/2022 pending on the file of the Senior Civil Judge & JMFC, Shorapur is withdrawn and transferred to the court of Senior Civil Judge & JMFC, Sindhanur, Raichur District.

Accordingly, civil petition stands disposed of.

Sd/-

JUDGE BL CT:NS